

**IN THE COURT OF COMMON PLEAS
KNOX COUNTY, OHIO**

STATE OF OHIO, ex rel. DAVE YOST,	:	Case No. 20IN06-0149
Plaintiff	:	Judge Richard D. Wetzel
-vs-	:	
THE LANDINGS PROPERTY ASSOCIATION, INC., ET AL.	:	
Defendants.	:	

FOURTH INTERIM REPORT OF RECEIVER

Now comes Jack Harris of Intercept Management Corp., the court-appointed receiver for the Defendant The Landings Property Owners Association, Inc. (“Receiver”), by and through counsel, and files this *Fourth Interim Report of Receiver* with the Court. The Receiver reports as follows:

1. The Receiver, with assistance from project engineer AK Hydro, continues to advance forward toward implementation and execution of the select Intermediate Risk Reduction Measures (“IRRMs”). Those include removal and/or grouting of the existing conduit and installation of a new principal spillway riser structure and conduit.

2. Much of the preparation for the work has been related to environmental and dam safety permitting and subsurface investigation. An ecological survey of wetlands and streams was completed by Lawhon and Associates as required. Preliminary mapping of those wetlands along the reservoir and within the vicinity downstream has been produced. These steps will lead to production of an ecological report, the results of which will determine what permitting is needed.

3. The goal is to minimize wetland impacts to avoid required mitigation steps. To the extent that impact cannot be sufficiently mitigated based on the results of the report, additional costs will be incurred for mitigation and an extended permitting review time is expected.

4. Subsurface drilling was performed on May 7-8. Three borings were taken: two along the embankment crest and one at the embankment toe. These were sent for testing and reporting which will inform future steps. Additionally, the engineer has completed a formal inspection of the site to document the current conditions.

5. Next steps in this process will include sediment sampling involving a subconsultant who will perform the sampling and testing. It is necessary for the reservoir to be drained to allow access for the sampling. As this has now occurred, AK Hydro is coordinating with the City of Mt. Vernon to have the sampling done.

6. AK Hydro, under the Receiver's direction, is also converting the City's stormwater model into acceptable format for ODNR Dam Safety including revising and verifying hydrologic inputs, analyzing probable maximum flood levels and completing a final report.

7. In consultation with AK Hydro, the project contractor anticipates using concrete-encased HDPE pressure pipe 30-36". The contractor is currently verifying availability of materials and the relative costs in preparation of commencement.

8. The Receiver also expects that the IRRM project will include an 8-12" diameter resilient wedge gate valve. Additionally, the flared endwall at the spillway conduit outlet will likely utilize standard ODOT precast headwall compatible with the pipes to be used.

9. Receiver, engineer and contractor are considering use of a precast manhole on the spillway riser. The size of the base will depend on the selected conduit. The spillway riser is also expected to utilize removable riser sections.

10. The Receiver anticipates that the permitting process will begin in the next 30-60 days.

11. Once required permits are received, the Receiver intends to begin in earnest to work with the residents and other affected parties on the following pivotal issues: (a) a “dry” vs. “wet” basin for use with the dam; (b) decision on final solution course of action; and (c) development of a plan to pay for the debt service which will be incurred in order to finance the construction, as well as ongoing maintenance of the structure.

Respectfully submitted,

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CERTIFICATE OF SERVICE

The undersigned hereby certifies that on May 28, 2025, a copy of the foregoing *Fourth Interim Report of Receiver* was submitted to the Court electronically and served upon the following:

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